PLAN SUMMARY AND FUNDING MEMO

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Clients	John Albert Smith and Alex O'Brien
Trust	The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026
Residence	123 Main Street, Pasadena, CA 91101 (Los Angeles County)
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Memo date	October 20, 2026

1. The Plan at a Glance

Decision	Choice
Trust type	Joint revocable living trust (restatement of The Smith and O'Brien Trust dated February 1, 2010)
Plan at first death	Mandatory A/B Split (Survivor's Trust and Bypass Trust)
Survivor's control	Survivor controls only the Survivor's Trust; the Bypass Trust is locked in at the first death.
Bypass Trust terms	Income for HEMS, principal for HEMS, 5-and-5 power, limited power of appointment
Specific gifts	None
Residue	Pat Rivera (40%); Chris Rivera (35%); American Red Cross (25%), per capita at each generation (Prob. Code 247)
Beneficiary shares	Lifetime protective trusts
Supplemental needs	None required (discretionary SNT clause included)
Backstop	One-half to UCLA Foundation One-half to the ACLU Foundation of Southern California
Options	No-contest clause: no; survivorship: 0 days; firearms: no; CP agreement: yes

2. Fiduciaries

Role	Who
Initial trustees	John Albert Smith and Alex O'Brien (both must sign)
Successor trustees	1. Pat Rivera (friend) 2. First Republic Trust Company *Serving together*
Executors	No pour-over wills prepared
Guardians	Not needed (no minor children)
Incapacity	1 physician certificate(s), or a court order

3. Placeholders and Blanks to Complete

Every item below is printed in the documents as a **highlighted blank**, or is a line completed at signing. Nothing else in the documents is a placeholder.

Item	Where it appears	How to complete
Assessor's Parcel Number for 456 Ocean Avenue, Santa Monica, California 90402	Schedule A, B, or C and the funding memo	Copy it from the property tax bill.
Notary name, date, signature, and seal	Every notary acknowledgment	Completed by the notary. Intentionally left blank.

4. Attorney Review Flags

- Joint representation: confirm a signed engagement letter with a joint representation and conflict-waiver disclosure (Rule of Professional Conduct 1.7).
- Mandatory A/B: confirm the estate size justifies the split. The Bypass Trust needs an EIN and an annual Form 1041, and its assets get no second basis step-up at the survivor's death. Elect portability anyway.
- Community property agreement included: this is a transmutation (Fam. Code 852) that may benefit one spouse at the other's expense (Fam. Code 721 fiduciary duty). Document the advice given and the opportunity for independent counsel.
- Charitable beneficiaries: confirm each charity's exact legal name and EIN.
- Real property: prepare and record a trust transfer deed for each parcel, with a PCOR. Out-of-state real property needs its own deed to avoid ancillary probate.
- Property tax: transfers to the trust are excluded from reassessment (R&T Code 62(d)). A later transfer of the home to children may qualify for the limited Proposition 19 parent-child exclusion (R&T Code 63.2); the claim must be filed after the death.
- Restatement: confirm that the original trust's amendment provisions allow a restatement by the method used, and that both spouses are the original trustors.
- Ancillary documents not prepared by this questionnaire: durable powers of attorney, advance health care directives, HIPAA releases, and trust transfer deeds.

5. Funding Checklist

Asset	Character	Action
456 Ocean Avenue, Santa Monica, California 90402	Community property	Record a trust transfer deed conveying title to the Trustees of The Smith and O'Brien Trust, with a Preliminary Change of Ownership Report (BOE-502-A) and the trust-transfer exclusion claimed (R&T Code 62(d)).

- Real property: trust transfer deed, PCOR (BOE-502-A), documentary transfer tax exemption noted (R&T Code 11930).
- Bank and brokerage accounts: retitle to "John Albert Smith and Alex O'Brien, Trustees of The Smith and O'Brien Trust, dated February 1, 2010, as restated on November 2, 2026," using the Certification of Trust.
- Retirement accounts and life insurance: do not retitle; update beneficiary designations.

- Vehicles and household goods: covered by the General Assignment; DMV retitling is optional.

6. Signing Instructions

- Trust Agreement: both spouses sign and initial each page; sign before a notary (acknowledgment attached).
- Certification of Trust and General Assignment: both spouses sign before a notary.
- No wills were prepared; confirm the clients have current pour-over wills.
- Keep the original trust and wills in a safe place known to the successor trustee; give copies of the Certification of Trust to financial institutions.

7. After the First Death

- Serve the trustee's notification under Prob. Code 16061.7 within 60 days (only for any part of the trust that becomes irrevocable).
- File a Change in Ownership Statement (Death of Real Property Owner, BOE-502-D) within 150 days (R&T Code 480).
- Consider the portability election on Form 706: due nine months after death (fifteen with extension), or up to five years for estates not otherwise required to file (Rev. Proc. 2022-32).
- Fund the Bypass Trust, obtain its EIN, and file Form 1041 each year.